

HOUSE BILL 202

By Keisling

AN ACT to amend Tennessee Code Annotated, Title 2,  
relative to elections.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Sections 2-2-141, is amended by deleting the section and substituting:

(a)

(1) After July 1, 2025, a person registering to vote in this state shall submit, along with the registration forms, proof that the applicant is a United States citizen for purposes of voting in elections in this state. Proof of citizenship required must be an original or a true and correct copy of a document listed in subdivisions (b)(1)–(4).

(2) The coordinator of elections shall compare monthly the statewide voter registration database with the department of safety database to ensure non-United States citizens are not registered to vote in this state. The coordinator of elections may compare the statewide voter registration database with those of relevant federal and state agencies, including the systematic alien verification for entitlements (SAVE) program database, the social security database, naturalization records, public health and public assistance records, and county records for the same purpose.

(3) The coordinator of elections shall ensure that the citizenship of registered voters is verified before the commencement of early voting for each election. If the coordinator of elections is not able to verify the citizenship of an

individual who has applied to register to vote prior to the registration deadline, the individual may only vote a provisional ballot, which must not be counted until the individual's citizenship is verified.

(4)

(A) If sufficient evidence exists that a particular registered voter is not a citizen of the United States, the coordinator of elections shall notify both the state election commission and the county election commission of the county where the person is registered to vote that the registered voter may not be a citizen of the United States. Notification of the state and county election commission must occur monthly.

(B) Not later than five (5) business days after receiving notice under subdivision (a)(4)(A), the county election commission shall send a notice to the registered voter inquiring whether the individual is eligible to be registered to vote. The county election commission shall send the notice to the address at which the voter is registered, by certified mail, return receipt requested. Voters are responsible for keeping the county election commission informed of the voter's current address by transferring or updating registration information in accordance with § 2-2-129. If the county election commission does not receive the return receipt within five (5) business days after the date the notice is postmarked, the voter is deemed to have received the notice at such time.

(b) A registered voter who receives a notice pursuant to subdivision (a)(4)(B) shall, no later than thirty (30) days after the receipt of such notice, provide proof of citizenship to the county election commission. For purposes of this subsection (b), proof of citizenship includes:

(1) The voter's birth certificate or a legible photocopy of the voter's birth certificate;

(2) The voter's United States passport or a legible photocopy of the pertinent pages of the voter's United States passport, identifying the voter and showing the passport number;

(3) The voter's United States naturalization documentation or a legible photocopy of the voter's United States naturalization documentation; or

(4) A document or method of proof of citizenship established by the federal Immigration Reform and Control Act of 1986 (8 U.S.C. §§ 1101 et seq.).

(c) If a notice sent by a county election commission under subdivision (a)(4)(B) is returned as undeliverable, or if the registered voter or person who responds to the notice does not provide proof of citizenship to the county election commission during the period specified under subsection (b), the administrator of elections of the county where the person is registered to vote shall purge the voter from the voter registration database, but shall permanently maintain the person's registration and voting history. In such event, the person may appeal to the state election commission and submit additional documentation in person or in writing that the person contends constitutes proof of citizenship.

(d) An appeal to the state election commission under subsection (c) must be conducted as follows:

(1) The voter shall notify the county administrator of elections and the state election commission of the appeal no later than fourteen (14) days after the county election commission has determined that the voter failed to provide satisfactory proof of citizenship. If the voter provides timely notice of appeal, the county administrator of elections shall not purge the voter from the voter

registration database pending the state election commission's adjudication of the appeal;

(2) The voter must submit originals or true and correct photocopies of documentation of citizenship to the state election commission with the voter's notice of appeal;

(3) The state election commission shall conduct a hearing at which the voter must appear in person or by means of electronic video in such a manner that allows all participants to see and hear each other in real time. The hearing must be conducted in accordance with the Tennessee Uniform Administrative Procedures Act, codified in title 4, chapter 5;

(4) The state election commission shall then enter an order determining whether or not the person is a United States citizen and qualified to vote in this state. The order must be supported by findings of fact and conclusions of law. The state election commission shall forward a copy of the order to the administrator of elections of the county where the person resides;

(5) The state election commission's determination is final and subject only to judicial review; and

(6) If the state election commission determines that the person is not a United States citizen and not qualified to vote in this state, the county administrator of elections shall purge the person from the records of registered voters and shall permanently maintain the person's registration and voting history. If the state election commission determines that the person is a United States citizen and qualified to vote in this state, the county administrator of elections shall restore the voter to the database of registered voters.

(e) Except as provided in this subsection (e) and as required by law, an order of the state election commission, including all documentation provided to show proof of citizenship as well as information from the department of safety database, relevant federal and state agency records, and county records, are confidential and not available for inspection by the public; provided, that such an order finding that a person who registered to vote is not a United States citizen is a public record. The coordinator of elections shall report to the appropriate district attorney general a determination that a person who registered to vote is not a United States citizen in violation of federal or state law, as applicable.

SECTION 2. Tennessee Code Annotated, Section 2-2-201(2)(C) and (D), are amended by deleting the subdivisions and substituting:

(C) Shall include a statement that specifies each eligibility requirement for voting as set forth in this title, including an attestation that the applicant meets each such requirement, including citizenship and the validity of the applicant's social security number, and that requires the signature of the applicant under penalty of perjury;

(D) Shall be made available by the department to the appropriate county election commission office and the coordinator of elections for purposes of ensuring compliance with § 2-2-141; and

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.